

Court No. - 51

Case :- CONTEMPT APPLICATION (CIVIL) No. - 9494 of 2023

Applicant :- Vijay Shukla

Opposite Party :- Shri Shadab Ahmad, Executive Engineer
Dakshinanchal Vidyut And Another

Counsel for Applicant :- Amit,Ravindra Kumar

Hon'ble Vikas Budhwar,J.

Let a copy of the Contempt Petition be served upon learned counsel for the opposite parties within 48 hours.

Put up this case on **23.1.2024** as fresh.

In the meantime, learned counsel for the opposite parties shall seek instructions.

Order Date :- 8.1.2024

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Court No. - 51

Case :- CONTEMPT APPLICATION (CIVIL) No. - 9494 of 2023

Applicant :- Vijay Shukla

Opposite Party :- Shri Shadab Ahmad, Executive Engineer Dakshinanchal Vidyut And Another

Counsel for Applicant :- Amit,Ravindra Kumar

Hon'ble Vikas Budhwar,J.

This Court on 08.01.2024 required the learned counsel for the applicant to serve a copy of the contempt petition upon the counsel appearing for the opposite party.

Today, the learned counsel for the applicant has produced before this Court a document showing that the service has been done upon Sri Manu Ghildiyal (AoR No. A/M 0372/2012).

Put up this case on **27.02.2024** as fresh, by which time Sri Manu Ghildiyal (AoR No. A/M 0372/2012) shall obtain instructions.

On the next date fixed, name of Sri Manu Ghildiyal (AoR No. A/M 0372/2012) shall be shown as counsel for the opposite party.

The document showing service is taken on record and is marked as Appendix 'A'.

Order Date :- 23.1.2024

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Court No. - 51

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Applicant :- Vijay Shukla

Opposite Party :- Shri Shadab Ahmad, Executive Engineer
Dakshinanchal Vidyut And Another

Counsel for Applicant :- Amit,Manu Ghildyal

Counsel for Opposite Party :- Manu Ghildyal

Hon'ble Dinesh Pathak,J.

1. Sri Manu Ghildiyal, learned counsel for the opposite party has prayed for and is granted a week's time to file compliance affidavit.

2. List this matter again on 05.03.2024 as **fresh**.

Order Date :- 27.2.2024/vkg

Court No. - 51

Case :- CONTEMPT APPLICATION (CIVIL) No. - 9494 of 2023

Applicant :- Vijay Shukla

Opposite Party :- Shri Shadab Ahmad, Executive Engineer
Dakshinanchal Vidyut And Another

Counsel for Applicant :- Amit,Manu Ghildyal

Counsel for Opposite Party :- Manu Ghildyal

Hon'ble Dinesh Pathak,J.

1. Sri Manu Ghildyal learned counsel has filed compliance affidavit on behalf of the opposite party, which is taken on record.
2. A copy of the said compliance affidavit has already been served upon the learned counsel for the applicant.
3. Heard learned counsel for the applicant and learned Standing Counsel for the respondents (Electricity Department).
4. Instant contempt application has been filed owing to wilful disobedience, at the part of the opposite party, of the order dated 10.08.2022 passed by this Court in Writ-C No.22798 of 2022 (Vijay Shukla vs. Uttar Pradesh Power Ltd. and 3 others) as well as wilful disobedience of the subsequent order dated 27.04.2023 passed by this Court in Contempt Application (Civil) No.3010 of 2023.
5. Facts culled out from the record are that having been aggrieved with the excessive electricity bill, petitioner has filed writ petition being Writ-C No.22798 of 2022 (Vijay Shukla vs. Uttar Pradesh Power Ltd. and 3 others). Aforesaid writ petition was finally disposed of with a direction to the respondent no.3 in writ petition, namely, Executive Engineer of Dakshinanchal Vidyut Vitran Nigam Limited, to decide the case of the petitioner under para 6.5 of U.P. Electricity Supply Code, 2005. For ready reference operative portion of the order dated 10.08.2022 is quoted herein below:

"In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is disposed off giving liberty to the petitioner to submit his/ her objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent No.3 within four weeks from today along with a certified copy of this order. In the event such an objection is

submitted within the stipulated period, it shall be decided by the respondent No.3 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand."

6. In pursuance of the order dated 10.08.2022, respondent has decided the representation dated 05.09.2022 moved on behalf of the petitioner, vide its order dated 21.10.2022. Having been dissatisfied with the said order, present petitioner has filed first contempt application, which was decided by order dated 27.04.2023, granting three months' more time to reconsider the case of the present petitioner. Therefore, instant contempt application has been filed. In the meantime respondents have passed fresh order dated 20.12.2023.

7. Having considered the rival submissions advanced by learned counsel for the parties and perusal of record, it is manifested that by order dated 10.08.2022 passed by the High Court, opposite party was directed to consider the objection to be filed by the petitioner under para 6.5 of U.P. Electricity Supply Code, 2005. However, petitioner has never filed any objection/application under para 6.5 of U.P. Electricity Supply Code, 2005. In pursuance of the order dated 10.08.2022, he has simply moved an application dated 05.09.2022 beseeching to consider his case under One Time Settlement (OTS) scheme. In his previous order dated 21.10.2022, respondent has clearly observed that One Time Settlement is a government policy, which can be availed by applying on the government website i.e. UP.ENERGY.IN. Despite the order dated 21.10.2022, petitioner has filed first contempt application, which was decided on 27.04.2023. In pursuance of the order dated 27.04.2023 passed in first contempt application, opposite party has passed another order dated 20.12.2023 apprising the present applicant that fresh OTS is scheduled from 08.11.2023 to 31.12.2023. As per submission made by learned counsel for the opposite party, said scheme was extended upto 16.01.2024. However, even then, petitioner has not applied on the government website to avail the scheme of OTS and filed this second contempt application. In all representations moved by him, he has pressed for consideration of his matter under the One Time Settlement Scheme, however, there is nothing on the record to demonstrate that he has properly applied on the government website particularly earmarked for this purpose to get benefit of OTS. Perusal of record on board reveals that he has never made any

endeavour to get his bill corrected or modified under the provisions as enunciated under para 6.5 of U.P. Electricity Supply Code, 2005, for which he has been directed vide order dated 10.08.2022 passed by this Court in Writ-C No.22798 of 2022.

8. In this conspectus, as above, I am of the considered view that the conduct of the present applicant itself is questionable, who has never applied for correction of his electricity bill in compliance of the order dated 10.08.2022 passed by this Court. All the time he has tried to settle his electricity dues under the OTS scheme that too without following the proper procedure as has been directed to be followed by the opposite party in their letter/order dated 21.10.2022 and 20.12.2023.

9. Resultantly, the instant contempt application, being misconceived and devoid of merits, is ***dismissed***.

Order Date :- 5.3.2024

Jitendra